

Tentative Rulings for Department 403

Begin at the next page

(37)

Tentative Ruling

Re: **Trevino v. Martinez**
Superior Court Case No. 23CECG05148

Hearing Date: July 7, 2026 (Dept. 403)

Motion: By Referee to Confirm Sale of Real Property

Tentative Ruling:

To continue the matter to Thursday, August 13, 2026 at 3:30 p.m. in Department 403. The referee is to file and serve notice of the hearing and any accompanying papers no later than July 30, 2026.

Explanation:

Code of Civil Procedure section 873.720 provides for a referee to confirm sale of real property. Such requires at least 10 days' notice to the purchaser and all other parties who have appeared in the action. (Code Civ. Proc., § 873.720, subd. (b).) Here, there is no indication that the referee provided notice of this hearing to the purchaser. The matter is continued and the referee is to provide notice to plaintiff and the purchaser of the continued hearing date. Additionally, the court is requesting a declaration from the referee addressing the decrease in the sales price from the February 19, 2026 Notice of Sale to the May 14, 2026 Notice of Sale.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 2, 2026.
(Judge's initials) (Date)